

7.	26PR0138	IN RE: THE JOHN E. SOLTESZ AND LUCILLE S. SOLTESZ REVOCABLE TRUST DATED APRIL 5, 2003
PETITION HEARING		

On May 14, 2026, Petitioner, Cynthia Soltesz, filed a Petition for Order Confirming Trust Existence, Determining Ownership of Property, and Directing Transfer of Real Property (Prob. Code § 850 et seq., 17200 et seq.). A Notice of Hearing was filed on May 22, 2026. No opposition has been filed.

Petitioner requests the following relief:

1. An order confirming that, for purposes of transferring the Property into the Trust, "The Lucille S. Soltesz Revocable Trust Agreement dated April 20, 2003" is the same agreement as the John E. Soltesz and Lucille S. Soltesz Revocable Trust dated April 5, 2003; and
2. An order confirming that all right, title, and interest of Lucille S. Soltesz in and to the real property commonly known as 3857 Hillsborough Rd, Cameron Park, El Dorado, CA 95682-8505, APN 082-245-008-000 (formerly 082-245-08-100), with the legal description set forth above, currently vested in "Lucille S. Soltesz, an unmarried woman," is vested in and transferred to Cynthia Soltesz, Trustee of the John E. Soltesz and Lucille S. Soltesz Revocable Trust dated April 5, 2003.

Trust Existence

The Trust was established by John E. Soltesz and Lucille S. Soltesz as Grantors on April 5, 2003. John E. Soltesz, one of the grantors and a co-trustee of the Trust died on February 8, 2010. On May 9, 2010, Lucille S. Soltesz, the surviving Grantor, executed the First Amendment to the Trust ("First Amendment"). The First Amendment used an incomplete name of the Trust ("First Amendment to the *Lucille S. Soltesz Revocable Trust Agreement of April 5, 2003*") in its title, whereas the text of the First Amendment references the full and correct name of the Trust, namely *John E. Soltesz and Lucille S. Soltesz Revocable Trust* and the date of its creation, April 5, 2003.

On March 14, 2013, Lucille S. Soltesz, the surviving Grantor, executed the Second Amendment to the Trust ("Second Amendment"). The Second Amendment uses an incomplete name of the Trust as in the First Amendment and contains a scrivener's error resulting in an incorrect reference to the date of the creation of the Trust ("*Second Amendment to the Lucille S. Soltesz Revocable Trust Agreement of April 20, 2003*") in its title.

Petitioner contends that the text of the Second Amendment, like the First Amendment, references the original Trust and the First Amendment dated May 9, 2010, which reflects the intent to amend the original Trust notwithstanding the incorrect title and the scrivener's error as

to the date in the title. Per Petitioner's declaration, she conducted a diligent search of available records and did not find any documents related to the creation of any other trusts.

The Court's power to reform a trust agreement based on mistake is codified in Code of Civil Procedure § 3399, which provides:

When, through fraud or a mutual mistake of the parties, or a mistake of one party, which the other at the time knew or suspected, a written contract does not truly express the intention of the parties, it may be revised on the application of a party aggrieved, so as to express that intention, so far as it can be done without prejudice to rights acquired by third persons, in good faith and for value.

A declaration of trust may be reformed and revised under Code of Civil Procedure § 3399 to correct a drafting error which, if left intact, would conflict with the actual expressed intent of the contracting parties. *Ike v. Doolittle* (1998) 61 Cal.App.4th 51, 81; *Giammarrusco v. Simon* (2009) 171 Cal.App.4th 1586, 1606.

Upon review of the Trust, First Amendment, Second Amendment, and Declaration of Cynthia Soltesz, the Court finds it was the intent of Lucille S. Soltesz to amend the John E. Soltesz and Lucille S. Soltesz Revocable Trust Agreement.

Property

On April 4, 2011, Decedent and Grantor of the Trust, Lucille S. Soltesz, obtained certain property located at 3857 Hillsborough Rd, Cameron Park, El Dorado County, CA 95682-8505, carrying Assessor's Parcel Number 082- 245-008-000 (formerly 082-245-08-100) in her individual name, as an unmarried woman. A Grant Deed was recorded on April 7, 2011.

On July 3, 2014, after the execution of the Second Amendment, Grantor, Lucille S. Soltesz, signed and had notarized a Quitclaim Deed to transfer the Property into the Trust. The name of the Trust to which the Quitclaim Deed purported to transfer the Property to is the same as the title of the Second Amendment, which contained the incomplete name of the Trust and a scrivener's error related to the date of the creation of the Trust. The Quitclaim deed was never recorded for unknown reasons. Petitioner believes this was an error on behalf of the prior attorney.

Petitioner argues the Trustor's notarized signature on the Quitclaim Deed evidences her intent to treat the Property as a Trust asset, notwithstanding the incomplete trust name and incorrect trust date used in the deed.

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or

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possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief.

Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

(a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.

(b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property, as well as any heir or devisee whose interest may be affected by the Petition.

Pursuant to Probate Code §850 and *Estate of Heggstad* (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that decedent intended the above-mentioned assets be part of the Trust.

TENTATIVE RULING #7:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.